



It's the real thing. Coke.

1800 1900 2000

33 Coca-Cola Bottle

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JUST OVER A century ago, The Coca-Cola Company faced a major challenge. Copycat colas with similar names and bottle designs—Noka-Cola, Coke-Ola, and the like—openly free-rode on the popularity of the fizzy drink. In 1915 it devised a potent tool to deter knockoffs: the distinctive delivery system that we know today as the Coca-Cola bottle.

A unique bottle, the company hoped, would serve as a versatile and powerful anti-fraud device. If the company's bottlers used only this bottle, and only Coca-Cola was sold in the bottle, consumers could know exactly what they were getting. The company could sue any competitor that dared to use a similar (much less identical) bottle. Better yet, the cost and risk of development might be too great for a knockoff to even attempt.

Today the famous curvy bottle is ubiquitous and synonymous with the product itself. Yet, the whole notion of bottling was actually an afterthought for the company. Early ads showed only fountain Coca-Cola. Company founder Asa Candler thought bottles were low-class

and left the bottling task to others, even going so far as to enter into a perpetual contract for syrup at a set price because he was so dubious of the enterprise. Syrup was sold to bottling franchisees all over the country. Candler miscalculated, as bottle sales soon outpaced fountain sales. Even Americans who would never find themselves seated at the soda fountain could buy a bottle of Coca-Cola for a nickel. While Candler's decision left huge profits on the table, it had the happy side effect of encouraging entrepreneurs to spread the Coca-Cola gospel. Bottling turned out to be a force for consumer diversification and mass consumption.

The company needed the bottlers' cooperation and investment to make any switch to a new uniform bottle. Yet bottlers were an unlikely partner in the quest to stamp out free-riders. Early bottles could be any shape or color, required by contract merely to have diamond-shaped paper labels bearing the company's name in capital letters. As agents of the company, some bottlers were faithless in the early days, furtively adulterating the syrup with saccharine.

On the left: Print advertisement, 1975. (Courtesy of The Coca-Cola Company)



(Soda fountains played games too, sometimes quietly swapping a different drink when customers asked for Coca-Cola—thus, Coke’s famous advertising campaign to ask for “the real thing.”)

A new bottle was urgent, in part, because of infirmities in a second legal tool that the company had used against knock-offs, namely trademark law. The company began filing trademark lawsuits against similar-sounding competitors almost as soon as the first soda fountain glass of Coca-Cola was pulled in 1886. But the company’s trademark suits had a weakness. The name Coca-Cola originally referred descriptively to two key ingredients. Coca leaf gave the product its original cocaine kick; the kola nut was known as a source of caffeine. Initially, the company played up the connection with illustrations of coca leaves and kola nuts on bottle labels and advertisements. However, the description was inaccurate. Well before 1915, cocaine had been removed from the “soft” drink, and the kola nut was only used in trace amounts.

The inaccuracy created problems for the company. When it sued a copycat called Koke for using a similar name, it was in turn accused of “unclean hands” for using a misleading mark. The potency of such an accusation, which could prevent enforcement of the trademark, was brought home by a non-IP case. The Food and Drug



Administration complained that, because Coca-Cola contained “no coca and little if any cola,” it was misbranded, in violation of federal pure food law. The suit, quaintly named *United States v. Forty Barrels & Twenty Kegs of Coca-Cola*, ultimately settled. In the meantime, Coca-Cola quietly dropped the coca and kola illustrations. But the case showed the company’s vulnerability to a misbranding claim.

The company was in a no-win legal situation. If Coca-Cola had contained cocaine, the company would have been in trouble for the cocaine, which became illegal to distribute without a doctor’s prescription in 1914. Absent cocaine and kola, its mark was misleading and arguably its product misbranded. A new bottle thus opened a new, less vulnerable front against knockoffs.

Above: Vintage ads for Coca-Cola. (Left: Photo by API / Gamma-Rapho via Getty Images. Right: Courtesy of Heritage Auctions, HA.com)



Above: Design evolution of the Coca-Cola bottle. (Mehmet Hilmi Barcin / Getty Images)

Strikingly, Coca-Cola's legal department, rather than marketing, led the charge. At the time, legal was staffed by far fewer than the 100 attorneys that today constitute the internal legal office of Coca-Cola. Harold Hirsch, the company's general counsel, exhorted the bottlers to accept a "bottle that we can adopt and call our own child." In appealing to the bottlers' ambition, he also revealed his own: "We are not building Coca-Cola alone for today. We are building Coca-Cola forever, and it is our hope that Coca-Cola will remain the National drink to the end of time."

The company and bottlers held a design contest with a \$500 reward. Eight glass manufacturers accepted the challenge to devise a bottle that could be recognized even in the dark, or in broken pieces on the ground. A team from the Root Glass Company visited the Terre Haute, Indiana, library to find images of coca and kola to somehow incorporate into their design. Bottle designers, it turns out, are

rarely great lawyers. A bottle that conveyed "coca" or "kola" would have invited the same legal headaches the company already faced from its trademark opponents and the federal government. By merciful circumstance, the team found nothing suitable.

Instead, legend has it, they found a picture on a nearby page of the *Encyclopedia Britannica*—an image of a cocoa pod, from which beans are harvested to make chocolate. Cocoa is a stimulant but otherwise has nothing to do with coca. The distinctive bulge of the cocoa pod was incorporated into the bottle design, yet another instance of (subtle) misdescription of the product. The shape and raised ridges identified the bottle not just by sight, but also by touch.

The Root Glass prototype won the competition and secured a design patent in 1915. The large cocoa bulge of the prototype made the bottle unstable and was slimmed down for production. A slight modification of the production version was





Above: Andy Warhol's bottle-inspired art. (Photo by Ben Rose / Getty Images)

On the left, and below: Empty bottles (Alamy); and the cacao bean that inspired the bottle's shape. (SSPL / Getty Images)



separately patented in 1923—surprisingly, despite the new patent's resemblance to the prior art. On the eve of the new patent's expiration in 1937, yet a third design, a slight modification of the second, was again separately patented. After three bites at the apple, the design patents finally expired in 1951.

Even without a design patent, the bottle was protected as trade dress. In seeking federal registration for its trade dress, the company cited a study showing that 99 percent of Americans could identify its product by the bottle shape alone, and in 1960, the bottle was accepted for registration. Meanwhile, the company's trademark suits finally escaped the specter of misdescription. The Supreme Court decided that it didn't matter that the Coca-Cola name was once misleading, because consumers understood the name as a signifier of source. Justice Holmes wrote for a unanimous court: "The name now characterizes a beverage to be had at almost any soda fountain. It means a single thing coming from a single source, and well known to the community."

The hourglass-shaped bottle has been fetishized as a design classic. Andy Warhol celebrated the bottle as an American cultural icon, featuring it prominently in his work:

What's great about this country is that America started the tradition where the richest consumers buy essentially the same things as the poorest. You can be watching TV and see Coca-Cola, and you know that the President drinks Coke, Liz Taylor drinks Coke, and just think, you can drink Coke, too. A Coke is a Coke and no amount of money can get you a better Coke than the one the bum on the corner is drinking. All the Cokes are the same and all the Cokes are good. Liz Taylor knows it, the President knows it, the bum knows it, and you know it.

Today, the company embraces Warhol's homage. At the time, however, it was far more suspicious. The company appears to have tolerated the paintings and silkscreens that Warhol produced, but immediately sent a cease-and-desist letter when Warhol took bottles, spray painted them silver,



filled them with perfume, and made them available for sale. Images of the bottle were fine, but any actual use of the bottle had to be fought.

Over the years, the company worked with a range of artists to fashion the Coca-Cola image. Norman Rockwell's well-known "Out Fishin'" (1935) portrayed a young boy fishing from his stoop on a tree stump, with his pole, his dog, and a bottle of Coca-Cola. Haddon Sundblum forever stamped his (and Coke's) mark on American cultural consciousness with his soon-to-be iconic Coca-Cola Santa—plump, jolly, and dressed in Coca-Cola red and white.

Although early advertising did emphasize the importance of the bottle for ensuring a cold and refreshing beverage, no one at the time could have imagined just how much the taste of a Coke and its packaging would ultimately merge. When Coca-Cola phased out glass packaging in favor of aluminum cans, customers complained that the product didn't taste the same, even though the formula had not changed. A 2004 study in the journal *Neuron* emphasized the importance of the contour bottle when it concluded that brand loyalty may override factors such as taste. More to the point, participants experienced the taste differently depending on the bottle used to deliver the soda.

Though an unqualified success as a branding device, the bottle has seen mixed results as a tool of legal enforcement. The 1915 design patent blocked some knockoffs and surely discouraged others. But in 1927, the company tested its patent against the makers of "Whistle," another soft drink sold in a slender hourglass bottle. The court considering the case rejected the company's broad claim to bottles with an hourglass shape, pointing to older designs

with the same general shape. Otherwise, the slender Whistle bottle was deemed quite unlike the "relatively short and stocky" bottle—"giv[ing] to the observer the impression of rotundity"—depicted in the 1915 patent. Much later, the company failed, in litigation in Australia and New Zealand, to prevent Pepsi from using an hourglass bottle.

Actual use of the bottle has waxed and waned. Shortly after registration of the bottle trademark, the company shifted from glass packaging to aluminum cans and plastic bottles. The bottle still appeared in advertisements, and a faint visual echo appeared in the curvy "dynamic ribbon device" printed on bottles and cans. In the 1990s, the shape made a big return, both in glass and, more importantly, in plastic bottles that adopted a version of the hourglass shape. The company attributed a large part of its sales growth during this period to the return of the famous contour bottle. In the 2000s, the company introduced a new aluminum version of the bottle. As the company noted in advertisements touting the bottle's return, sounding an almost apologetic note: "Certain things belong in certain packages. Anything else just doesn't seem right." ♦

Further Reading

Mark Prendergast (2013) *For God, Country, and Coca-Cola: The Definitive History of the Great American Soft Drink and the Company That Makes It* (3rd rev. edn). New York: Basic Books.

Coca-Cola Company v. Whistle Company of America, 20 F.2d 955, D. Del. 1927.

US Design Patent No. 48,160 (issued Nov. 16, 1915), "Design for a Bottle or Similar Article."

On the left: Vintage advertisement. (Photo by API / Gamma-Rapho via Getty Images)